



A COMMUNITY OF CHOICE

Planning and Development Department

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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White, Planner II
Subject: PLN-20-00009 – Encroachment Regulations
Date: March 8, 2021

Background:

The item for consideration is a **UDC Text Amendment**. This is approved by **Ordinance**.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 03/08/2021
- Public Services Committee 03/16/2021
- 2nd reading 03/22/2021
- Public Services Committee 04/6/2021
- Third and final reading 04/12/2021

Planning Commission Recommendation:

The Planning Commission heard this item at their March 1, 2021 meeting and **voted 4-0** to recommend the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE UNIFIED DEVELOPMENT CODE (UDC) SECTION 6.6.3.b.1, ENCROACHMENTS.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment that is the subject of this ordinance meets the criteria specified in Section 2.4.1.d of the UDC.

Section 2. The intent of this amendment is to recognize changing development needs and patterns in the City.

Section 3. That on March 1, 2021 the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 4. That sub-section 6.6.3.b.1 is amended to read as follows:

1. Encroachments.

- (a) Where the front building line is built at the front setback line, small projections such as bays, balconies, eaves and other minor projections integral to the structure and design may encroach up to 5’ in front of the front building line, but in no case beyond the front lot line.
- (b) Porches and stoops associated with a front entrance may encroach up to 10’ in front of the front setback line provided any roof or associated structure is no greater than a single story. See Figure 6-9.

(1) Shifted porches or side porches may encroach up to 50% of the side setback.

(c) Uncovered Decks and porches may encroach up to 50% of the required principal building side and rear setback, provided that no portion other than a handrail shall extend higher than 30 inches above the finished grade level.

(e)(d) Encroachments for accessibility such as handicap ramps attached and projecting from the foundation are not restricted, except that in no case will these accessibility encroachments extend into adjacent properties, easements or rights-of-way. Where accessibility issues and pedestrian access along the right-of-way are appropriately balanced and the design is consistent with the streetscape design, handicap ramps may be approved by the City Engineer according to the subdivision waiver procedures and criteria in Article 2.

(d)(e) These rules apply whether the encroachment as described in the section includes a foundation or not.

(f) Alternative designs or proposals may be considered by the Board of Adjustment through the Conditional Use process of Section 2.2.4.

Section 5. That the aforementioned Section of the UDC is hereby amended as set out within this ordinance and sections currently existing within the UDC not set out within this ordinance remain unchanged.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune Eagle



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PLANNING COMMISSION

MARCH 1, 2021

STAFF REPORT

REQUEST: A Text Amendment amending the Unified Development Code Section 6.6.3.b.1, Encroachments.

CASE NUMBER: PLN-20-00009

PREPARED BY: Connor White, Planner II, Planning and Development Department

RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** text amendments to the Unified Development Code Section 6.6.3.b.1, Encroachments, as outlined in this staff report and recommended by staff, noting the request meets the review criteria of UDC 2.4.1.d.

BACKGROUND:

The City's Unified Development Code (UDC) was adopted by the Governing Body on January 23, 2012, by Ordinance Number 3943 with an effective date of April 30, 2012. The Unified Development Code is the regulatory document carrying out the vision of PlanCheyenne and is reviewed annually pursuant to UDC 1.1.7 [Annual Review Requirement] to determine if any particular standard or regulation is timely, relevant and adequately addresses current market conditions. In addition to the annual review, the Planning and Development Director and City Engineer are authorized under UDC 2.4.1.b.3 to bring forward text amendments on their own initiative.

The current code does not give a clear direction on the allowed encroachment of decks within the rear and side yard. The way that staff currently reviews decks is, a deck must meet principal building setbacks. The required rear setback on residential lots is generally 20-feet.

DISCUSSION:

UDC Section 6.6.3.b.1 contains the regulations on the allowed encroachments of small projections such as bays, balconies, eaves and porches or stoops associated with the front entrance. This section does not currently contain regulations on allowed encroachments of decks or porches not associated with the front entrance that would be encroaching into a side or rear yard. Currently, staff reviews decks as being required to meet the principal buildings setbacks. All single-family residential lots have a required 20-foot rear setback, which means that a deck would also need to meet this setback. If a citizen has a home that

is at the 20-foot rear setback line and would like to add a deck on the back, it would not be permitted under current code.

Staff researched the surrounding community regulations regarding deck encroachments. What was found is that all communities are quite different in what they permit and how it is written. A few of the communities did allow up to 50% of the principal buildings' rear setback for uncovered decks. Staff has determined that this would be acceptable and would allow people to build an uncovered deck to within 10-feet of the rear property line. The reason for allowing the encroachment for only uncovered decks is because should the whole thing be covered with a roof, citizens then start to enclose the deck with walls and then you have an enclosed structure within 10-feet of the property line.

Subsection "f" is added so that if a citizen has an alternative design or proposal, they can apply for a conditional use which would be reviewed by the Board of Adjustment. The conditional use would be reviewed to see if the proposal matches the character of the neighborhood and allows for public comment.

PROPOSED AMENDMENTS:

Amend subsection b:

Subsection "b" explains how far porches can encroach into the front setback. The additions to this section are to call out an existing figure that gives examples of porches and to allow the Shifted/ side porches to encroach into the side setback up to 50%. This 50% encroachment would be used mainly by corner lots.

- "b. Porches and stoops associated with a front entrance may encroach up to 10' in front of the front setback line provided any roof or associated structure is no greater than a single story. See Figure 6-9.
 - 1. Shifted porches or side porches may encroach up to 50% of the side setback.

Create subsection c:

A new subsection "c" would be created to detail the allowed encroachments of uncovered decks and porches into the side and rear yard. With the creation of this new subsection, the existing subsection that follow will change to the next alphabetical lettering.

- "c. Uncovered Decks and porches may encroach up to 50% of the required principal building side and rear setback, provided that no portion other than a handrail shall extend higher than 30 inches above the finished grade level."

Create subsection f:

Subsection "f" would be created to allow citizens to propose alternatives to this section through the conditional use, rather than a variance. This would allow staff to determine if the alternative compatible with the surrounding area.

- "(f) Alternative designs or proposals may be considered by the Board of Adjustment through the Conditional Use process."

REVIEW CRITERIA:

Review of a UDC text amendment shall be measured by the following three (3) criteria of Section 2.4.1.d:

1. COMPREHENSIVE PLAN:

"The amendment is in accordance with general goals and policies of the Comprehensive Plan, or is necessary to address an emerging issue not anticipated in the Comprehensive Plan and is not inconsistent with the plan."

This proposed text amendment is necessary to address an issue not anticipated in the Comprehensive Plan when the Unified Development Code (UDC) was adopted. The amendment does not change the use of residential properties but gives a clearer understanding on how far a porch or deck can encroach into the properties yard. The amendment would allow for further encroachment than what is currently allowed.

2. STATE STATUTORY REQUIREMENTS:

The amendment is consistent with the Wyoming Statutes, and specifically the Municipal Planning and Zoning statutes. The following Articles are all listed verbatim from Wyoming State Statute.

WYO 15-1-601 (a): The governing body of any city or town, by ordinance, may:
 (ii) Establish setback building lines.

Assessment: This amendment proposes modifying the Unified Development Code for the purposes of allowing uncovered decks to encroach into both the side and rear yard, thus creating a new allowed setback.

3. HEALTH, SAFETY, AND PUBLIC WELFARE:

"The amendment promotes the general health, safety and public welfare."

This amendment would not adversely impact the general health, safety and public welfare of Cheyenne.

CONCLUSION:

Staff concludes that this text amendment meets the review criteria of UDC 2.4.1.d.

STAFF RECOMMENDATION:

Move to recommend the Governing Body **approve** text amendments to the Unified Development Code Section 6.6.3.b.1, Encroachments, as outlined in this staff report and recommended by staff, noting the request meets the review criteria of UDC 2.4.1.d.